

SENATE BILL No. 291

DIGEST OF INTRODUCED BILL

Citations Affected: IC 33-24; IC 33-25-4; IC 34-30-2.1.

Synopsis: Court security. Repeals current code concerning the supreme court sheriff. Allows the supreme court and the court of appeals to each appoint a court marshal and allows each appointed court marshal to hire deputy court marshals. Requires a court marshal to ensure the safety and security of the court. Requires a supreme court marshal and a court of appeals court marshal to carry out certain responsibilities. Provides that a court marshal is entitled to qualified immunity for acts performed in the course of official duties. Specifies that a court marshal has limited police powers and is required to notify the local law enforcement agency as soon as practicable when a security threat is detected.

Effective: July 1, 2026.

Baldwin

January 12, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 291

A BILL FOR AN ACT to amend the Indiana Code concerning courts and court officers.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 33-24-5 IS REPEALED [EFFECTIVE JULY 1,
- 2 2026]. (Supreme Court Sheriff).
- 3 SECTION 2. IC 33-24-5.1 IS ADDED TO THE INDIANA CODE
- 4 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
- 5 JULY 1, 2026]:
- 6 **Chapter 5.1. Supreme Court Marshal**
- 7 **Sec. 1. As used in this chapter, "supreme court marshal" refers**
- 8 **to an appointed supreme court marshal and a deputy marshal**
- 9 **hired by an appointed supreme court marshal under section 2(b)**
- 10 **of this chapter.**
- 11 **Sec. 2. (a) The supreme court may appoint a court marshal.**
- 12 **(b) A marshal appointed under subsection (a) has the authority**
- 13 **to hire deputy marshals to assist with the duties required under**
- 14 **this chapter.**
- 15 **(c) A supreme court marshal serves at the pleasure of the chief**
- 16 **justice.**
- 17 **Sec. 3. (a) A supreme court marshal is responsible for the**



following:

(1) Ensuring the safety and security of:

(A) the justices; and

(B) staff;

of the supreme court, including the appellate clerk's office, all primary office locations, offsite venues, and judicial residences.

(2) Attending the court during term time.

(3) Preserving order within the court.

(4) Communicating with law enforcement agencies on behalf of the court.

(5) Providing trial courts with security assessments, including education and advice on security needs of judges and court staff.

(6) Maintaining security systems at the state house, court staff offices, and the homes of supreme court justices.

(7) Coordinating and providing security for events within Indiana that involve the justices or staff of the court of appeals.

(8) Any additional duties as assigned by the chief justice.

(b) Upon receipt of a process, rule, or order, a supreme court marshal may transmit the process, rule, or order to the sheriff of the county within which the process, rule, or order is to be served.

Sec. 4. (a) When acting in an official capacity, a supreme court marshal may:

(1) act as security for judicial officers and court staff in any county in Indiana;

(2) use any force necessary to carry out the duties described in section 3 of this chapter;

(3) carry a weapon on public and private property;

(4) access the following information for official court security purposes only:

(A) criminal history record information, including limited and full records, obtained through state or federal criminal justice information systems;

(B) records of the bureau of motor vehicles, including driver's license information, vehicle registration data, and associated identifying information; and

(C) sensitive law enforcement intelligence information, including threat assessments, alerts, bulletins, and intelligence products, when the information:

(i) relates to the safety and security of a supreme court



justice, court staff, court facilities, or court proceedings;
and

(ii) is provided by, or accessed through, a law enforcement agency or criminal justice information system authorized to disseminate such information.

(b) Information described in subsection (a)(4)(C) may only be accessed in relation to a threat assessment, officer safety, protective operations, and the prevention or mitigation of threats to court security. A supreme court marshal shall comply with all applicable state and federal laws, rules, and policies governing the access, use, dissemination, retention, and confidentiality of the information obtained. Unauthorized access, use, or dissemination of information obtained under subsection (a)(4)(C) is prohibited.

(c) A supreme court marshal has limited police powers, including a limited power to detain, to carry out the requirements of this chapter. A supreme court marshal shall notify the local law enforcement agency as soon as practicable when a security threat is detected. A supreme court marshal may not respond to local emergencies or incidents not related to court security. A supreme court marshal shall defer to local law enforcement to effect any arrest necessary, including the processing of an individual or pursuit of criminal charges.

Sec. 5. A supreme court marshal is entitled to qualified immunity for acts performed in the course of official duties required under this chapter.

SECTION 3. IC 33-25-4-1 IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. The clerk ~~and sheriff~~ of the supreme court shall be clerk ~~and sheriff~~ of the court of appeals.

SECTION 4. IC 33-25-4-4 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The court of appeals may appoint a court marshal.

(b) A court marshal appointed under subsection (a):

(1) serves at the pleasure of the court of appeals until the court of appeals terminates the court marshal's service by an order of the court; and

(2) has the authority to hire deputy marshals to assist with the duties required under this chapter.

SECTION 5. IC 33-25-4-5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. A:

(1) court marshal appointed; or



(2) deputy court marshal hired;
under section 4 of this chapter is entitled to qualified immunity for
acts performed in the course of official duties required under this
chapter.

SECTION 6. IC 33-25-4-6 IS ADDED TO THE INDIANA CODE
AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
1, 2026]: Sec. 6. (a) A court marshal appointed under section 4 of
this chapter is responsible for the following:

(1) Ensuring the safety and security of:

(A) the judges; and

(B) staff;

of the court of appeals at all primary office locations, offsite
venues, and judicial residences.

(2) Attending the court of appeals during term time.

(3) Subject to subsection (b), executing:

(A) the orders of the court of appeals; and

(B) all processes, including civil processes, issued out of the
court of appeals.

(4) Preserving order within the court of appeals.

(5) Supervising deputy court marshals hired under section 5
of this chapter.

(6) Communicating with law enforcement agencies on behalf
of the court of appeals.

(7) Maintaining a security system at the state house, staff
offices, and the homes of judges of the court of appeals.

(8) Coordinating and providing security for events involving
the judges or staff of the court of appeals.

(9) Any additional duties as assigned by the chief judge of the
court of appeals.

(b) Upon receipt of a process, rule, or order from the court of
appeals, a court marshal may transmit the process, rule, or order
to the sheriff of the county within which the process, rule, or order
is to be served.

SECTION 7. IC 33-25-4-7 IS ADDED TO THE INDIANA CODE
AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
1, 2026]: Sec. 7. (a) When acting in an official capacity, a court
marshal and a deputy court marshal may:

(1) act as security for judicial officers and court staff in any
county in Indiana;

(2) use any force necessary to carry out the duties described
in section 6 of this chapter;

(3) carry a weapon on public and private property;



(4) access the following information for official court security purposes only:

(A) criminal history record information, including limited and full records, obtained through state or federal criminal justice information systems;

(B) records of the bureau of motor vehicles, including driver's license information, vehicle registration data, and associated identifying information; and

(C) sensitive law enforcement intelligence information, including threat assessments, alerts, bulletins, and intelligence products, when the information:

(i) relates to the safety and security of a court of appeals judge, court staff, court facilities, or court proceedings; and

(ii) is provided by, or accessed through, a law enforcement agency or criminal justice information system authorized to disseminate such information.

(b) Information described under subsection (a)(4)(C) may only be accessed in relation to a threat assessment, officer safety, protective operations, and the prevention or mitigation of threats to court security. A court marshal or a deputy court marshal shall comply with all applicable state and federal laws, rules, and policies governing the access, use, dissemination, retention, and confidentiality of the information obtained. Unauthorized access, use, or dissemination of information obtained under subsection (a)(4)(C) is prohibited.

(c) A court marshal and a deputy court marshal have limited police powers, including a limited power to detain, to carry out the requirements of this chapter. A court marshal or a deputy court marshal shall notify the local law enforcement agency as soon as practicable when a security threat is detected. A court marshal and a deputy court marshal may not respond to local emergencies or incidents not related to court security. A court marshal and a deputy court marshal shall defer to local law enforcement to effect any arrest necessary, including the processing of an individual or pursuit of criminal charges.

SECTION 8. IC 34-30-2.1-543.3 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 543.3. IC 33-24-5.1-5 (Concerning immunity of a supreme court marshal).**

SECTION 9. IC 34-30-2.1-545.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS



1 [EFFECTIVE JULY 1, 2026]: **Sec. 545.5. IC 33-25-4-5 (Concerning**
2 **immunity of a court of appeals court marshal).**

